



Witham Navigation Company Act 1969

CHAPTER XI

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

FINANCE

4. Reduction of capital.
5. Creation of loan stock.
6. Issue of loan stock.
7. Certificates to be called in and others issued.
8. Closing of transfer book before issue of new shares and loan stock.
9. Persons to be treated as shareholders.
10. Rights in respect of shares and loan stock.

PART III

ADMINISTRATION

Section

11. Voting rights.
12. Indemnity before issue of substituted certificates, etc.
13. Company not bound to regard trusts.
14. Register of shareholders and shareholders' address book.
15. Transfer by a personal representative.
16. As to transfers of shares or loan stock on death or bankruptcy.
17. Notice in cases of death or bankruptcy.

PART IV

MISCELLANEOUS AND GENERAL

18. Power to dispose of reversion to lease.
19. Amendment and repeal.
20. Costs of Act.

SCHEDULES:

Schedule 1—Provisions relating to the loan stock.

Schedule 2—

Part I—Provisions of Act of 1812 amended.

Part II—Provisions of Act of 1812 repealed.

ELIZABETH II



1969 CHAPTER XI

to reorganise the capital structure of the Company
 Proprietors of the Witham Navigation by reducing the
 nominal value of the shares and by creating and issuing
 to the Proprietors of the Company amounts of
 secured loan stock: to authorise the Company to
 dispose of their reversion to the lease of the Witham
 Navigation: to confer further powers on the Company:
 for other purposes. [25th July 1969]

WHEREAS the Company of Proprietors of the Witham
 Navigation (hereinafter in this Act referred to as "the
 Company") were incorporated by an Act passed in the
 second year of the reign of King George III intituled "An 1812 c. 108.
 for rendering more effectual an Act of His present Majesty,
 relating to the Lands lying on both Sides the River Witham in the
 County of Lincoln, and restoring the Navigation of the said
 River, and for repealing another Act of His present Majesty in
 relation to the said Drainage and Navigation" and by that Act
 the Company were empowered and required to execute, make and
 maintain and keep in repair certain works of drainage and naviga-
 tion and other works and to do various acts therein particularised
 for the purpose of executing such works were authorised to
 raise moneys as therein provided:

And whereas by Acts passed in the years 1826 and 1829 the
 Company were authorised to raise further capital and additional
 powers were conferred upon them:

1846 c. lxxi. And whereas the Great Northern Railway Act, 1846, authorises the construction of a branch railway part of which connects Boston with Lincoln and the part of the railway between the city of Boston and the City of Lincoln was constructed in great part upon the banks of the river Witham and that Act required the Company to grant to the Great Northern Railway Company a lease for 999 years of all the estate and interest of the Company in the said river Witham and in the navigation thereof from the Grand Sluice in the borough of Boston to the High Bridge in the city of Lincoln:

And whereas in accordance with the requirements of the said Act of 1846 the Company demised all the Company's interest in the river Witham and its navigation and associated property and works to the Great Northern Railway Company for a term of 999 years from 26th June, 1846, at a rent of ten thousand five hundred and forty-five pounds clear of all deductions whatsoever payable half-yearly:

1921 c. 55. And whereas by virtue of the Railways Act, 1921, the Transport Act, 1947, and the Transport Act, 1962, the lease is now vested in the British Waterways Board:

And whereas since the demise by the Company of their interest the only function of the Company has been to receive the said rent and, after payment of expenses (including corporation tax), to distribute it to the proprietors by way of dividend:

And whereas the issued share capital of the Company is one hundred and eighty-nine shares of one hundred pounds each divided into two thousand and eighty-nine shares of one hundred pounds each:

And whereas it is expedient to reduce the nominal value of the shares to ten pounds each and as compensation for the reduction to issue to each proprietor of the Company indebted by the Company's loan stock carrying interest at the rate of 5 per cent per annum to the nominal value of ninety pounds in respect of each one hundred pounds held by such proprietor as in this Act is provided:

And whereas it is expedient that the other powers conferred by this Act should be conferred upon the Company:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this behalf assembled, and by the authority of the same, that the powers conferred by this Act should be conferred upon the Company:

the advice and consent of the Lords Spiritual and Temporal, Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

This Act may be cited as the Witham Navigation Company Short title, 1969.

This Act is divided into Parts as follows:—

Division of
Act into Parts.

- Part I—Preliminary.
- Part II—Finance.
- Part III—Administration.
- Part IV—Miscellaneous and general.

(1) In this Act unless the subject or context otherwise Interpretation.
the following words and expressions have the meanings
ascribed to them respectively (that is to say):—

"the Act of 1812" means the Act passed in the fifty-second 1812 c. 108.
year of the reign of George III intituled "An Act for
rendering more effectual an Act of His present Majesty,
for draining Lands lying on both Sides the River Witham
in the County of Lincoln, and restoring the Navigation
of the said River; and for repealing another Act of
His present Majesty in relation to the said Drainage and
Navigation";

"the appointed day" means the first day of September
nineteen hundred and sixty-nine;

"the Company" means the Company of Proprietors of the
Witham Navigation;

"the management committee" means the general committee
to manage the affairs of the Company elected under
Section LVI (First and other General Assemblies) of the
Act of 1812 and for the time being holding office;

"existing" means existing immediately before the appointed
day;

"existing shares" means the two thousand and eighty-nine
shares of one hundred pounds each issued by the
Company;

"the loan stock" means the five per cent. irredeemable loan
stock created by section 5 (Creation of loan stock) of
this Act.

References in this Act to any other enactment shall be
understood as references to that enactment as amended by any
enactment including this Act.

PART II

FINANCE

Reduction of capital.

4. As from the appointed day the issued capital of the Company shall be reduced from two hundred and eight thousand hundred pounds divided into two thousand and eighty-nine of one hundred pounds each to twenty thousand eight hundred and ninety pounds divided into two thousand and eighty shares of ten pounds each fully paid the nominal value of existing share being reduced in value accordingly.

Creation of loan stock.

5.—(1) As from the appointed day there shall be created in virtue of this section one hundred and eighty-eight thousand and ten pounds of five per cent. irredeemable unsecured stock.

(2) As consideration for the reduction in the nominal value of the shares of the proprietors the Company shall allot to such proprietor ninety pounds of such stock credited as paid in respect of each share of one hundred pounds held immediately before the appointed day.

(3) The loan stock is issued upon the conditions set out in Schedule I to this Act.

Issue of loan stock.

6. Subject to the provisions of this Act the Company shall as soon as is reasonably practicable after the appointed day arrange for the issue to each proprietor of the amount of loan stock which he is to receive under the provisions of the last foregoing section and free of charge register him in the books of the Company as the holder of that amount of loan stock.

Certificates to be called in and others issued.

7.—(1) The Company shall call in and cancel the certificates for the existing shares and in accordance with the provisions of this Act shall issue in exchange for those certificates to the holder thereof free of charge certificates for the number of shares and for the amount of loan stock to which he is by this Act entitled but no proprietor shall be entitled to new certificates or to receive any amount by way of dividend on the number of shares or interest on the amount of loan stock to which he is entitled until he shall have delivered up to the Company the existing certificates for which such new certificates are to be substituted or shall have proved to the satisfaction of the management committee the loss or destruction of such existing certificates and shall have given such guarantee of indemnity in respect thereof as the management committee may require:

Provided that subject to the provisions of this section the issue of new certificates proprietors shall accordingly

of shares and amount of loan stock to which they are entitled have and possess the same rights and privileges as if such certificates had been issued to them.

(1) In the event of the holder of existing shares failing to deliver to the Company the existing certificates or proving to the reasonable satisfaction of the management committee that they have been and giving such guarantee or indemnity as aforesaid the Company shall lodge the new certificates in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act, 1925, and a certificate given in accordance with those rules stating that the certificates have been so lodged shall have the same effect for the purposes of this section as the receipt of such a person.

(2) (a) The register of transfers of the existing shares shall be closed during the period of fourteen days immediately before the appointed day.

Closing of
transfer book
before issue
of new shares
and loan
stock.

The Company shall give not less than seven days' notice of the closing of the said register by advertisement in one or more newspapers circulating in the county of Lincoln.

Any transfer of a number of the existing shares made during the time when the register of transfers is closed shall as between the Company and the person claiming under the transfer but not otherwise be considered as made subsequent to the appointed day.

(3) The persons whose names appear immediately before the appointed day in the register of the existing shares of the Company shall, unless the contrary is proved to the satisfaction of the management committee, be deemed to be the holders of those shares and the receipt in favour of such persons or of their executors or administrators or of the guardian of the estate of any such person being a minor shall constitute an effectual discharge to the Company and the management committee.

Persons to
be treated as
shareholders.

Where the management committee are for three months after the appointed day unable after diligent enquiry to ascertain to whom the certificates for any shares and loan stock ought to be issued or who can give an effectual receipt therefor they may at any time after the expiration of that period lodge the certificates in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act, 1925, and a certificate given in accordance with those rules stating that the certificates have been so lodged shall have the same effect for the purposes of this section as the receipt of such a person.

PART II

—cont.

Rights in
respect of
shares and
loan stock.

10.—(1) Subject to the provisions of this section the shares and the loan stock issued to a holder of the existing shares shall be held in the same rights, on the same terms and subject to the same powers, provisions, charges and liabilities as in, on or subject to which the existing shares were held immediately before the appointed day and so as to give effect to and not to revoke any deed, will or other instrument or testamentary disposition disposing of or affecting such shares.

(2) Any bequest of or any covenant or provision of an will or other instrument relating to any specific number of existing shares of the Company shall be held to apply to that number of shares and amount of loan stock issued in respect of that specific number of shares.

(3) Trustees, executors and administrators and all proprietors in any representative or fiduciary capacity and persons under disability may and shall accept the amount of loan stock so issued to them and may hold, dispose of or otherwise deal with the shares and such loan stock in all respects as they have held, disposed of or otherwise dealt with the shares in respect of which the shares and loan stock are substituted.

PART III

ADMINISTRATION

Voting rights.

11.—(1) At every general or special assembly of the Company every motion or question put to the vote shall be decided by a show of hands unless (before or on the declaration of the result of the show of hands) a poll is demanded

- (a) by the Chairman of the assembly; or
- (b) by at least two proprietors present in person or by proxy; or
- (c) by any proprietor present in person or by proxy, who is not less than one-tenth of the issued share capital.

(2) At every general or special assembly every proprietor entitled to attend and vote thereat shall on a show of hands be entitled to one vote and on a poll to one vote for each share.

(3) Notwithstanding anything in any enactment relating to the Companies Act 1948 or any other enactment relating to the Company where several persons are jointly entitled to the shares any one of those persons may vote at any general or special assembly of the Company either personally or by proxy in respect of the shares as if he were solely entitled thereto but if more than one of the persons so present at any such general or special assembly personally or by proxy that one of the said persons so present whose name is first on the register in respect of the shares shall alone be entitled to vote.

Several executors or administrators of a deceased proprietor in whose name any shares stand shall for the purposes of this section be deemed joint holders thereof.

Notwithstanding anything in any enactment from time to time relating to the Company the Company shall not be under any obligation to issue a new certificate of any shares or loan stock or new warrant in respect of dividend or interest in lieu of any certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such certificate or warrant is to be issued such indemnity as the management committee may require against any and every claim which may be made against the Company or expense which the Company may incur in respect of such lost or destroyed certificate or warrant or the shares or loan stock, dividend or interest represented thereby.

Indemnity before issue of substituted certificates, etc.

The Company shall not be bound to see to the execution of any trust whether express, implied or constructive to which any shares or loan stock of the Company may be subject; and the receipt of the person in whose name any such share or loan stock stands in the books of the Company, or if it stands in the names of more persons than one, the receipt of one of the persons named in the register of proprietors or holders of loan stock, shall from time to time be a sufficient discharge to the Company for any dividend or interest or other sum of money payable in respect of such share or loan stock, notwithstanding any trusts to which such share or loan stock may then be subject, and whether or not the Company have had notice of such trusts; and the Company shall not be bound to see to the application of the money paid in respect of such receipt.

Company not bound to regard trusts.

Notwithstanding anything in sections LIX (General Regulations) and LXXVI (Names of Proprietors, and Numbers of their shares to be entered in a Book, and Certificates of the Number of shares delivered to them) of the Act of 1812 it shall not be obligatory on the Company after the appointed day —

Register of shareholders and shareholders' address book.

(a) to keep separately a register of proprietors and a proprietors' address book if in lieu thereof the Company keep one register only containing such particulars as are required by those sections of the Act of 1812 to be entered in the proprietors' address book and the register of proprietors respectively; or

(b) to authenticate by the affixing of their common seal or otherwise the register of proprietors or any register which the Company may keep in lieu thereof under the powers conferred by this section.

PART III
—cont.

Transfer by a
personal
representative.

15. A transfer of the share or other interest of a deceased proprietor of the Company, or of a deceased holder of loan stock made by his personal representative shall, although the personal representative is not himself a proprietor of the Company or holder of loan stock of the Company (as the case may be), be valid as if he had been such a proprietor or holder of loan stock at the time of the execution of the instrument of the transfer.

As to
transfers of
shares or
loan stock
on death or
bankruptcy.

16.—(1) Any person becoming entitled to any share or stock in consequence of the death or bankruptcy of the holder may upon such evidence being produced as may from time to time properly be required by the management committee and subject as hereinafter in this section provided, elect either to be registered himself as the holder of the share or loan stock or to have some other person nominated by him registered as the transferee thereof. The management committee shall, in either case, have the right to decline or suspend registration as they would have in the case of a transfer of the share or loan stock by that holder before his death or bankruptcy (as the case may be).

(2) If the person so entitled shall elect to be registered himself he shall deliver or send to the Company a notice in writing signed by him stating that he so elects. If he shall elect to have another person registered he shall testify his election by executing to that person a transfer of the share or loan stock. All the limitations, restrictions and provisions of any enactment for the time being applying to the Company relating to the right to transfer the registration of transfers of shares or loan stock shall be applicable to any such notice or transfer as aforesaid, as if the death or bankruptcy of the holder had not occurred and the notice or transfer were a transfer signed by that holder.

(3) A person becoming entitled to any share or loan stock by reason of the death or bankruptcy of the holder shall be entitled to the same dividends or interest and other advantages to which he would be entitled if he were the registered holder of the share or loan stock, except that the holder of a share shall not, by being registered as the proprietor, be entitled in respect of the share to exercise any right conferred by being the proprietor at the meetings of the Company:

Provided that the management committee may at any time give notice requiring any such person to elect either to be registered himself or to transfer the share or loan stock and if the person does not comply with such notice within ninety days the management committee may thereafter withhold payment of all dividends or interest and other moneys payable in respect of the share or loan stock until the requirements of the notice have been complied with.

A notice may be given by the management committee to any person entitled to a share or loan stock in consequence of the death or bankruptcy of a proprietor or of a holder of loan stock (as the case may be) by sending it through the post in a prepaid envelope addressed to him by name or by the title of personal representative of the deceased or trustee of the bankrupt or by the description, at the address, if any, within the United Kingdom supplied for the purpose by the person claiming to be entitled, or (until such an address has been so supplied) by the notice in any manner in which the same might have been given if the death or bankruptcy had not occurred.

PART III
—cont.
Notice in cases of death or bankruptcy.

PART IV

MISCELLANEOUS AND GENERAL

(1) The Company may by a resolution passed in accordance with subsection (3) of this section sell the reversion to the lease of the navigation.

Power to dispose of reversion to lease.

If the Company sell their reversion to the lease in accordance with the foregoing subsection they may, if authorised by a resolution passed in accordance with subsection (3) of this section, go into liquidation and, if so resolved, the liquidation shall be governed and conducted in all respects as would a comparable liquidation of a company incorporated under the Companies Act, 1948, be governed and conducted.

1948 c. 38.

The resolution required by subsection (1) and subsection (2) of this section shall be a resolution passed by a majority of not less than three-fourths of the proprietors voting in person or by proxy at a general or special assembly of the proprietors of which at least twenty-one days' notice in writing specifying the resolution to propose the resolution has been duly given:

Provided that, if it is so agreed by a majority in number of the proprietors being a majority together holding not less than one-third in nominal value of the shares, a resolution may be passed and passed at an assembly of which less than twenty-one days' notice has been given and such a resolution shall be deemed to have been passed in accordance with the foregoing provisions of this subsection.

In this section "the lease of the navigation" means the lease granted on the twenty-second day of January, one thousand eight hundred and fifty, granted by the Company to the Great Northern Railway Company under the Great Northern Railway Act, 1846 c. lxxi. of the estate and interest of the Company in the river

PART IV
—cont.

Witham and in the navigation thereof from the Grand Sluice the borough of Boston to the High Bridge in the city of Linc... which is now vested in the British Waterways Board.

Amendment
and repeal.

19.—(1) As from the appointed day the amendments specified in the second column of Part I of Schedule 2 to this Act shall be made in the provisions of the Act of 1812 specified in the first column of the said Part.

(2) As from the appointed day the provisions of the said Act specified in Part II of the said schedule shall be repealed.

Costs of Act.

20. All costs, charges and expenses preliminary to and of or incidental to the applying for and the preparing, obtaining or passing of this Act shall be paid by the Company and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

PROVISIONS RELATING TO THE LOAN STOCK

Section 5.

Loan stock shall be issued and held in amounts of one pound or multiple of one pound and not otherwise and the Company shall under any obligation to register a transfer of loan stock which make the holding (if any) of the transferor or transferee an amount other than one pound or a multiple of one pound of loan stock.

(1) Subject to sub-paragraph (2) of this paragraph interest on loan stock will be payable at the rate of 5 per cent. per annum by half-yearly instalments on 1st January and 1st July in each year, shall be paid in preference to any dividends payable to proprietors of the Company.

The first payment of such interest on 1st January, 1970, in respect of the period between the appointed day and 31st December, 1969, shall be at the rate of £1 13s. 4d. per one hundred pounds of stock.

A register of loan stock shall be kept by the clerks to the Company and shall be entered the names and addresses of the holders and the amounts of their respective holdings, and such register shall be open for inspection at all reasonable times by any proprietor or holder of loan stock without payment.

Loan stock may be transferred by means of a stock transfer in accordance with the provisions of the Stock Transfer Act, 1963. Any stock transfer shall be delivered to the clerks to the Company for registration by them, and upon such registration the transferee shall be deemed by the Company as the holder of the amount of loan stock transferred.

Upon liquidation the loan stock shall be repaid in full before any of the assets of the Company is distributed among the shareholders but the holders of the loan stock shall not be entitled to participate in any distribution of the assets in excess of the liabilities of the Company.

Section 19.

SCHEDULE 2

PART I

PROVISIONS OF ACT OF 1812 AMENDED

Enactment (1)	Amendment (2)
Section LVI (First and other General Assemblies)	For the words "on the fourth Thursday in June and the third Thursday in December in each and every year at the hour of eleven in the forenoon at such Places as the said Company of Proprietors in their preceding General Assemblies shall from time to time direct and appoint" shall be substituted the words "each year in the month of June or on such other times and at such places as the General Committee herein referred to may from time to time appoint".
Section LVIII (Assembly of Proprietors may be specially convened)	After the words "in the said Undertaking" there shall be inserted the words "or for the General Committee".
Section LIX (General Assembly to elect and appoint Officers, and take Security from them)	For the words "paying for every Two Hundred Words to be copied the sum of one shilling" there shall be substituted the words "on payment of such fee as the General Committee shall from time to time fix" and the words "Rate or Price aforesaid" there shall be inserted the words "on payment of the fee for the undertaking being fixed by the General Committee".
Section LXI (Powers of the Committee)	For the word "two" there shall be substituted the word "three".
Section LXIII (Subscribers to have a Vote for every Share, by themselves or Proxies)	For the words "of the first Five Shares" and "for all Shares exceeding Five Shares" there shall be substituted the word "Share".
Section LXXIII (Shares may be sold)	For the words "have registered" there shall be substituted the word "register".
Section LXXVI (Names of Proprietors, and Numbers of their Shares to be entered in a Book, and Certificates of the Number to be delivered to them)	For the words "Company of Proprietors" in the first place where the words occur there shall be substituted the words "General Committee".

PART II

PROVISIONS OF ACT OF 1812 REPEALED

SCH. 2
—cont.

Enactment (1)	Extent of Repeal (2)
LVI (First and other General Assemblies)	The words "to be held on the said Fourth Thursday after the passing of this Act and on the Fourth Thursday in June in every succeeding Year and at no other Time"; and the words "in their own Right".
LXIII (Subscribers to Vote for every Share, by themselves or Proxies)	The words "to be held as hereinafter appointed for carrying on the said Undertaking", the words "every such Proxy being a Proprietor in the said Undertaking" and the words "and that no Person shall give or deliver, or vote in respect of Proxies for more than the Shares of Two absent Proprietors".
LXVIII (Shares may be transferred)	The words "shall be kept by the said Purchaser or Purchasers for his, her or their Security, after" and the words "and shall have testified or indorsed the Registry of such Memorial on the said Conveyance or Transfer".
LXXV (Regulations as to Acquisition of Shares)	The whole section.
LXXVI (Names of Shareholders and Numbers of Shares to be entered in a Register and Certificates of the Shares to be delivered to Shareholders)	The words "at their first or at some subsequent General Assembly".

22

PRINTED AND BOUND BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
HARRY PITCHFORTH

At Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

2s. 0d. net